

The Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947

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State of Jharkhand - Act

The Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947

JHARKHAND

India

The Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947

Act 3 of 1947

Published on 15 March 1947

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The Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947

Bihar Act

3 of 1947

Governor-General's assent published in the Bihar Gazette, Extraordinary of the 15th March, 1947.

An Act to regulate the letting of buildings and the rent of such buildings and to prevent unreasonable eviction of tenants therefrom in the Province of Bihar.

Whereas it is expedient to regulate the letting of buildings, to control the rent of such buildings and to prevent unreasonable eviction of tenants therefrom in the Province of Bihar.

It is hereby enacted as follows:-

1.

Short title, extent and duration.

(1)

This Act may be called the Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947.

(2)

It applies to the local area specified in the Schedule and such other areas as may be notified by the State Government in the Official Gazette or by an authority empowered in this behalf by the State Government.

(3)

It shall remain in force up to and including the 31st March, 1976.

Provided that the expiration of this Act under the operation of this subsection shall not-

(a)

render recoverable any sum which during the continuance thereof was irrecoverable or affect the right of a tenant to recover any sum which during the continuance of this Act was recoverable by him thereunder; or

(b)

affect any liability incurred under this Act, or any punishment incurred in respect of any contravention of this Act or order made thereunder; or

(c)

affect any investigation or legal proceeding in respect of any such liability or punishment as aforesaid; and any such investigation or legal proceeding may be instituted, continued, or enforced and any such punishment may be imposed, as if this Act had not expired.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context. -

(a)

"an appellate authority" means in respect of any local areas comprised within the limits of the Dhanbad Sub-division in the district of Manbhum, the Additional Deputy Commissioner of Dhanbad and, in respect of any other areas, the Collector of the district in which such areas are situated and includes any other officer empowered by the State Government to perform the functions of an appellate authority;

(aa)

"building" means any building or hut or part of a building or hut, let or to be let separately for residential or non-residential purposes, and includes-

(i)

the garden, grounds and outhouses, if any, appertaining to such building or hut or part of such building or hut; and

(ii)

any furniture supplied by the landlord for use in such building or hut or part of a building or hut;

(b)

"Controller" means in respect of any local areas comprised within the limits of a sub-division, the Sub-divisional Officer in-charge of the subdivision, and includes any other officer appointed in this behalf by the State Government to perform the functions of a Controller under this Act.

(bb)

"Court" means the Court having jurisdiction under the Code of Civil Procedure, 1908, to entertain a suit by a landlord against a tenant for recovery of a building in respect of which a suit or application is filed under this Act;

(c)

"fair rent" means the rent of a building determined or re-determined under sections 5, 6 or 7;

(d)

"landlord" includes the person who for the time being is receiving or is entitled to receive, the rent of a building whether on his own account or on behalf of another, or on account or on behalf or for the benefit of himself and others or as an agent, trustee, executor, administrator, receiver or guardian or who would so receive the rent or be entitled to receive the rent, if the building were let to a tenant;

(e)

"prescribed" means prescribed by rules made under this Act; and

(f)

"tenant" means any person by whom, or on whose account, rent is payable for a building and includes-

(i)
a person continuing in possession after the termination of the tenancy in his favour; and

(ii)
a person who occupies building as an employee of the landlord of such building either on payment of rent or otherwise.

3.

Premium, Salami, fine or advance of more than one month's rent not to be claimed or received.

- It shall not be lawful for any person to claim or receive, in consideration of the grant, renewal, or continuance of a tenancy of any building, the payment of any premium, salami, fine or any other like sum in addition to the rent, or the payment of any sum exceeding one month's rent of such building as rent advance.

4.
Enhancement of rent of buildings.

- Notwithstanding anything contained in any agreement or law to the contrary, it shall not be lawful for any landlord to increase, or claim any increase in rent which is payable for the time being in respect of any building except in accordance with the provisions of this Act.

5.
Determination of fair rent of building in occupation of tenants.

(1)
When, on application by the landlord or by the tenant in possession of a building or otherwise, the Controller has reason to believe that the rent of that building is low or excessive, he shall hold a summary inquiry and record a finding.

(2)
If, on a consideration of all the circumstances of the case, including any amount paid by the tenant by way of premium or any other like sum in addition to, the Controller is satisfied that the rent of the building is low or excessive, he shall determine the fair rent for such building.

6.
Determination of fair rent of buildings not in occupation of tenants.

- The Controller may, on his own motion and shall, on the application of the landlord or a prospective tenant and after making such inquiry as he thinks fit., determine the fair rent for any building not in the occupation of a tenant.

7.
Re-determination of fair rent in certain cases.

(1)
If at any time after the fair rent of a building has been determined under section 5 or 6 it appears to the Controller that subsequent to such determination-

(a)
some addition, improvement or alteration, not included in the repairs which the landlord is bound to make under any law, contract or custom, has been made to the building at the landlord's expense, or

(b)
municipal assessment of the building as defined in the Explanation to Section 8 has been revised.
The Controller may, after making such inquiry as he thinks fit, re-determine the fair rent of the building.

(2)
(a)
Any increase in the fair-rent allowed under clause (a) of sub-section (1) shall not in any month exceed 5/8th per cent of the cost of the addition, improvement or alteration.

(b)
The re-determination of a fair rent of a building on account of revision of municipal assessment shall be in accordance with the provisions contained in clause (b) of sub-section (1) of Section 8.

8.
Matters to be considered in determining fair rent.

(1)
(a)
For the purposes of this Act, the fair rent of a building shall be determined as for a tenancy from month to month.

(b)

The fair rent of a building in respect of which a municipal assessment has been made, shall for each month be one tenth of the amount of such assessment and the landlord shall not be entitled to recover from the tenant in addition to the amount, any municipal rates, taxes or cesses in respect of such building except in accordance with the provisions of Section 8-A.

(c)

In determining the fair rent of any other building under section 5 or 6, the Controller shall have due regard to the prevailing rates of rent in the locality for the same or similar accommodation in similar circumstances at any time during the twelve months preceding the first day of November, 1941, and to the increased cost of repairs, and in the case of a building which has been constructed after that date, also to any general increase in the cost of site and building construction:

Provided that where the Controller is satisfied, on an application made to him by the landlord under section 5, that the rent of a building referred to in this clause is low, the Controller shall, in determining the fair rent of such building to be payable by a tenant, fix the rent of the building at a figure which shall not be less than the average monthly rent actually paid for the same or similar accommodation by tenant over the period of twelve months preceding the first day of November, 1941, increased by not more than 25 per cent of the average monthly rent so received by the landlord during the aforesaid period in addition to the enhancement, if any, on account of the increased cost of repairs or the general increase in the cost of sites and building construction, where such enhancement is admissible under the foregoing provision of this clause.

Explanation. - For the purposes of this clause, where rent was charged by the landlord or actually paid by the tenant for the same building over the aforesaid period on any basis other than a monthly basis, the average monthly rent for such building shall be calculated at thirty times the average rent per day of the period in respect of which the rent was charged or actually paid.

(2)

When the fair rent of a building has been determined or re-determined, any sum in excess or short of such fair rent paid whether before or after the date appointed by the Controller under sub-section (3), in respect of occupation for any period after such date shall in case of excess, be refunded to the person by whom it was paid or at the option of such person be otherwise adjusted and in case of shortage be realised by the landlord as arrears of rent from the tenant:

Provided that if a building is let out subsequent to the determination or re-determination of a fair rent, on a rent which is less than the fair rent so determined or re-determined the landlord shall not be entitled at any time to release the difference between the fair rent and the rent at which the tenant was admitted to occupation.

(3)

In every case in which the Controller determines or re-determines the fair rent of a building, he shall appoint a date with effect from which the fair rent so determined or re-determined shall take effect:

Provided that in any case in which the fair rent is re-determined under subsection (1) of Section 7, the fair rent shall not take effect from any date earlier than the date on which the addition, improvement or alteration, referred to therein was completed:

Provided further that in any case in which the fair rent is determined under section 5 or 6, the fair rent shall not take effect from any date earlier than three months prior to the date on which the application was made or, as the case may be, the proceedings were started by the Controller on his own motion.

Explanation. - Municipal assessment in this section means the annual value of a holding comprising a building as determined under the Bihar and Orissa Municipal Act, 1922 or, as the case may be under the Patna Municipal Corporation Act, 1951 and, if the fair rent of only a portion of such building is to be determined, the proportionate annual value of such portion as may be determined by the Controller.

8A.

Right to claim increase or decrease in fair rent.

(1)

Whereafter the fair rent of a building has been determined or re-determined under sections 5, 6 or 7, there has been an increase or decrease in the municipal rents, taxes or cesses-

(a)

the landlord shall be entitled to increase the rent of such building on the ground, and to the extent, of increase in the municipal rates, taxes or cesses in respect of such building; and

(b)

the tenant shall be entitled to claim a reduction in the rent payable for such building on the ground, and to the extent, of decrease in such rates, taxes or cesses in respect of the building.

(2)

Where the tenant has to pay municipal rates, taxes or cesses payable by the landlord because of the default of the landlord to meet those charges, the tenant shall be entitled to recover the same from the landlord by adjustment towards the rent payable by him or as if the amount paid by him were a debt due to him by the landlord.

(3)

Where any dispute, arises between the landlord and the tenant in respect of any matter contained in sub-section (1) or (2), the dispute shall, on application by either party, be decided by the Controller.

9.

Directions for repairs to building.

(1)

Every landlord shall carry out the repairs which he is bound, under any law, contract or custom, to make to a building in the possession of a tenant.

Explanation. - In this sub-section, "repairs" include annual white-washing, recolouring and periodical repairs.

(2)

If the landlord fails to carry out annual white-washing, re-colouring and periodical repairs, which he is bound to make, the tenant may by notice require him to carry out the same within one month from the date of service of the notice and, on the landlord's failure to do so within the said period, the tenant may himself carry out the same at a cost not exceeding one month's rent for the building and deduct such cost from the rent.

(3)

If the landlord neglects to carry out any repair, other than those referred to in sub-section (2), which he is bound to make the Controller shall, on application by the tenant which shall specify the approximate cost of such repairs, cause a notice to be served on the landlord to appear and show cause within such time as may be fixed, against the application.

(4)

If the landlord does not appear in obedience to the notice or if he appears but fails to satisfy the Controller as to why he should not be directed to carry out the repairs or such of them as he finds the landlord is bound to make, the Controller shall, after making such further inquiry as may be necessary, direct him to carry out the same within a time to be fixed and on the landlord's failure to comply with such direction, the Controller may permit the tenant to carry out such repairs at a cost not exceeding such amount as may be specified in the order and to recover such cost from the landlord. It shall thereafter be lawful for the tenant to make such repairs and to deduct the cost thereof from the rent or to recover it otherwise from the landlord as if it were a debt due to him by the landlord:

Provided that no order for the carrying out of repairs under this sub-section shall be made, if the Controller is satisfied that the repairs involved were due to the negligence of the tenant.

10.

Landlord not to interfere with amenities enjoyed by the tenant.

(1)

No landlord shall, without just or sufficient cause, cut-off or withhold any of the amenities enjoyed by the tenant.

(2)

A tenant in possession of a building may, if the landlord has contravened the provisions of sub-section (1), make an application to the Controller complaining of such contravention and may restore any of the amenities, on his own responsibility, pending consideration of his application by the Controller.

(3)

If the Controller, on an inquiry, is satisfied that the landlord has without just or sufficient cause cut-off or withheld any of the amenities enjoyed by the tenant at the time of the commencement of the tenancy or at any time thereafter, he shall-

(i)

in case such amenity has already been restored by the tenants' make an order directing the landlord to pay the tenant the cost of such restoration as determined by him within such time as may be specified in the order; and

(ii)

in any other case, direct the landlord to restore such amenity at such cost and within such time as may be determined by

him and also that in case the landlord fails to do so, the amenity may be restored by the tenant at his own cost and such amount as may be specified in order may be recovered by the tenant as the cost of the restoration either by the adjustment towards the rent payable by him or as if the amount were a debt due to him by the landlord.

Explanation. - In this section 'amenities' include supply of water, electricity, lights in passages and on staircases, lifts and conservancy of sanitary service.

11.

Eviction of tenants.

(1)

Notwithstanding anything contained in any contract or law to the contrary but subject to the provisions of the Industrial Disputes Act, 1947 and to those of Section 12, where a tenant is, in possession of any building, he shall not be liable to eviction therefrom except in execution of a decree passed by the Court on one or more of the following grounds:

(a)

for breach of the conditions, of the tenancy, or for subletting the building or any portion thereof without the consent of the landlord, or if he is an employee of the landlord occupying as an employee, on his ceasing to be in such employment;

(b)

where the condition of the building has materially deteriorated owing to acts of waste by, or negligence or default of the tenant, or of any person residing with the tenant or for whose behaviour the tenant is responsible;

(c)

where the building is reasonably and in good faith required by the landlord for his own occupation or for the occupation of any person for whose benefit the building is held by the landlord:

Provided that where the Court thinks that the reasonable requirement of such occupation may be substantially satisfied by evicting the tenant from a part only of the building and allowing the tenant to continue occupation of the rest and the tenant agrees to such occupation, the Court shall pass a decree accordingly, and fix proportionately fair rent for the portion in occupation of the tenant which portion shall hence forth constitute the building within the meaning of clause (aa) of Section 2, and the rent so fixed shall be deemed to be the fair rent fixed under section 5.

Explanation. - In this clause the word 'landlord' shall not include an agent referred to in clause (d) of Section 2.

(d)

where the amount of two months rent lawfully, payable by the tenant and due from him is in arrears by not having been paid within the time fixed by contract or in the absence of such contract, by the last day of the month next following that for which the rent is payable or by not having been validly remitted or deposited in accordance with Section 13; and

(e)

in the case of a tenant holding on a lease for specified period, on the expiry of the period of the tenancy.

(2)

(a)

Where a servant of the Government in possession of any building as a tenant intends to vacate such building, he shall give fifteen days previous notice in writing of his intention to do so to the landlord and to the District Magistrate who shall under intimation to the landlord, within a week of the receipt of the notice either allot building to any other servant of the Government whom the District Magistrate thinks suitable, subject to the payment of rent, and the observance of the conditions of the tenancy by such servant of the Government, or direct that the landlord shall be put in possession of the building:

Provided that when no such order is passed by the District Magistrate, the landlord shall be deemed to have been put in possession of the building.

(b)

Where a building is vacated by a servant of the Government any person occupying such building other than the person referred to in clause (a) shall be liable to be evicted by the District Magistrate in such manner as may be prescribed:

Provided that, after a landlord has been or is deemed to have been put in possession of such building, he may let it to any person.

Explanation. - In this sub-section "District Magistrate" includes Additional Deputy Commissioner of Dhanbad.

11A.

Deposit of rent by tenant in suits for ejectment.

- If in a suit for recovery of possession of any building the tenant contests the suit, as regards claim for ejectment, the

landlord may make an application at any stage of the suit for order on the tenant to deposit month by month rent at a rate at which it was last paid and also the arrears of rent, if any and the Court, after giving an opportunity to the parties to be heard, may make an order for deposit of rent at such rate as may be determined month by month and the arrears of rent, if any, and on failure of the tenant to deposit the arrears of rent within fifteen days of the date of the order or the rent at any such rate for any month by the fifteenth day of the next following month, the Court shall order the defence against ejectment to be struck out and the tenant to be placed in the same position as if he had not defended the claim to ejectment. The landlord may also apply for permission to withdraw the deposited rent without prejudice to his right to claim decree for ejectment and the Court may permit him to do so. The Court may further order recovery of cost of suit and such other compensation as may be determined by it from the tenant.

11B.

When a tenant is entitled to restoration of possession and compensation.

- Where the landlord recovers possession of any building from the tenant by virtue of a decree secured because of clause (c) of sub-section (1) of Section 11 and the building is not occupied by the landlord, or by person for whose benefit the building is held, within one month of the date of vacation of the building, by such tenant, or the building, having been so occupied is re-let within six months of the date of such occupation to any person other than such tenant without the permission of the Controller, the Court may, on the application of such tenant made within nine months of his vacating the building, and giving the landlord an opportunity of being heard by order direct the landlord to put such tenant in possession of the building or to pay him such compensation as may be fixed by the Court or both.

12.

Extension of period limited by lease.

(1)

if a tenant in possession of any building, held on a lease for a specified period intends to extend the period limited by such lease, he may give the landlord at least one month before the expiry of the period limited by the lease, a written notice of his intention to do so, and upon the delivery of such notice the said time shall, subject to the revision of Section 11, be deemed to have been extended by double the period covered by the original lease subject to a maximum of one year.

(2)

Where the landlord to whom notice has been given under sub-section (1) wishes to object to the extension demanded by the tenant on one or more of the grounds mentioned in sub-section (1) of Section 11 or on the ground that the landlord has any other good and sufficient cause for terminating the lease on the expiry of period limited thereby, he may, within fifteen days of the delivery of such notice, apply to the Court in that behalf and the Court after hearing the parties may terminate the lease or extend the same for such period as it deems proper in the circumstances:

Provided that the tenant shall not in any case be allowed to remain in possession of building beyond the period permissible under sub-section (1).

(3)

If the tenant fails to vacate the building on the termination of the lease or as the case may be, on the expiry of the period fixed by the Court under subsection (2), the Court shall, on an application by the landlord, pass an order for ejectment, which shall be executed as a decree and may further order that the tenant shall pay to the landlord such amount as may be determined by it as daily compensation.

13.

Deposit of rent by tenant on refusal of the landlord to accept it or in case of doubt or dispute as to the person entitled to receive it.

(1)

When a landlord refuses to accept any rent lawfully payable to him by a tenant in respect of any building, the tenant may remit such rent, and continue to remit any subsequent rent which becomes due in respect of such building, by postal money-order to the landlord.

(2)

Where any bona fide doubt or dispute has arisen as to the person who is entitled to receive any rent in respect of any building, the tenant may deposit such rent in the prescribed manner, stating the circumstances under which such deposit is made and may, until such doubt has been removed or such dispute has been settled by the decision of any competent Court or by settlement between parties, continue to deposit in the manner, the rent that may subsequently

become due in respect of such building.

(3)

When a deposit has been made under sub-section (2), the amount of such deposit shall be held by the Controller pending the removal of the doubt or the settlement of the dispute which has arisen as to the person who is entitled to receive rent, either by the decision of a competent Court or by settlement between the parties and the amount of such deposit, may be withdrawn by the person who is declared by such Court to be entitled to it or who is held by the Controller to be entitled to it in accordance with such settlement.

14.

Tenant making payment of rent entitled to receipt.

(1)

Every tenant who makes a payment on account of rent to his landlord shall be entitled to obtain forthwith from the landlord a receipt in the prescribed form for the amount of rent paid by him, duly signed by the landlord or his appointed agent.

(2)

If a landlord, without reasonable cause, fails to deliver to the tenant a receipt, as required by sub-section (1), such landlord shall be liable to fine not exceeding double the amount of rent so paid, to be imposed after summary inquiry, by the Controller upon a complaint of the party aggrieved within three months from the date of such failure.

15.

Controller to maintain list of fair rents.

(1)

The Controller shall maintain up to date a list showing the fair rents of buildings as determined or redetermined by him from time to time under this Act.

(2)

A copy of the list shall remain in the office of the Controller available for inspection free of charge during office hours, and copies of the entries in such list may be granted by the Controller on payment of such charge, not exceeding rupee one per copy, as may be fixed by the Controller.

16.

Power of Controller to make inquiries and inspection.

(1)

For the purpose of any inquiry under this Act, the Controller may-

(a)

enter and inspect any building at any time between sunrise and sunset, or authorise any officer subordinate to him to so enter and inspect any building:

Provided that no building shall be entered, without the consent of the occupier, unless at least twenty-four hour's previous notice in writing has been given; and

(b)

by written order, require any person to produce for his inspection such account, rent receipts, books or other documents relevant to the inquiry, at such time and at such place, as may be specified in the order.

(2)

The Controller shall in so far as such powers are necessary for carrying out the provisions of this Act, have power to summon and enforce the attendance of witnesses, and to compel the production of documents by the same means and, so far as may be in the same manner as is provided in the case of Court by the Code of Civil Procedure, 1908.

17.

Execution of order of Controller and Commissioner.

- Every order of the Controller passed under this Act where no appeal against such order has been preferred under section 18, every order of the appellate authority on appeal under Section 18 and every order of the Commissioner passed in revision under section 18B shall be executed by the Court, as if such orders were a decree passed by such Court.

18.

Appeal.

(1)

Any person aggrieved by an order passed by the Controller may within fifteen days from the date of receipt of such order by him, prefer an appeal in writing to the appellate authority;

(2)

On such appeal being preferred, the appellate authority may;

(a)

after perusing the memorandum of appeal and hearing appellant, if necessary, summarily dismiss the appeal; or

(b)

call for the records of the case from the Controller and after examining such records and, if necessary, making such further inquiry as he thinks fit decide the appeal.

(3)

Subject to the provisions of Section 18B, the decision of the appellate authority and subject only to such decision where an appeal lies an order of the Controller shall be final, and shall not be liable to be questioned in any Court of law whether in a suit or other proceeding by way of appeal or revision.

18A.

Award of costs.

- In every order passed by the Controller under this Act and every order of the appellate authority or the Commissioner passed on appeal under section 18 or in revision under section 18B, as the case may be, the authority passing such order may, if it thinks fit, award costs to the person in whose favour the order is passed and the cost so awarded shall include such sum as compensation for the expense, trouble and loss of time incurred in, or incidental to the hearing of the case, as to the authority may seem just and reasonable.

18B.

Power of revision of Commissioner.

- Subject to such rules as may be prescribed and for reasons to be recorded in writing, the Commissioner may, either of his own motion or on application made to him in this behalf, revise any order passed by the Controller or by the appellate authority on appeal under this Act.

19.

Notice to landlord or tenant by Controller before exercising powers under this Act.

- Before exercising any of the powers conferred by this Act, the Controller shall give notice of his intention to do so to the landlord and to the tenant, if any, and shall consider any application that may be received by him, within the period specified in the notice, from such landlord or tenant or from any other person likely to be affected by the exercise of such powers and shall hear the applicant, if so desired by him.

20.

Penalties.

(1)

If any person contravenes any of the provisions of this Act, he shall, except as otherwise provided in Section 14, be punishable with imprisonment for a term which may extend to two years or with fine or with both.

(2)

Whoever fails to comply with any direction made or deemed to have been made under this Act shall be punishable with imprisonment for a term which may extend to one year or with fine or with both:

Provided that the Court trying any offence under this section may order the whole or any part of the fine recovered to be applied to the payment to any person as compensation for any loss caused by the offence.

21.

Supply of certified copies of orders and decisions of Controller and Commissioner.

- Any person affected by any order of the Controller or any decision of the appellate authority on appeal or any order of the Commissioner in revision made or passed under this Act shall be entitled to be furnished with a copy thereof duly certified by the Controller, the appellate authority or the Commissioner, as the case may be, to be a true copy, on payment of such fee as may be prescribed, and such copy shall be admissible in evidence in any Court of law to prove the order of the Controller the decision of the appellate authority on appeal or the order of the Commissioner in revision, as the case may be.

22.

Decisions which have become final not to be re-opened.

- The Controller shall summarily reject any application which raises substantially the same issues as have been heard and finally decided in a former proceeding under this Act between same parties or between parties under whom they or any of them claim.

23.

Protection of action taken under the Act.

(1)

No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of any order made or deemed to have been made under this Act.

(2)

No suit or other legal proceeding shall lie against the Government for any damage which is in good faith done or intended to be done in pursuance of any order made or deemed to be made under this Act.

23A.

Act not to apply to buildings owned by Government.

- Nothing contained in this Act shall apply to a tenant whose landlord is the local authority or the State or the Central Government.

24.

Power to make rules.

(1)

The State Government may make rules for carrying out the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely-

(a)

the manner of depositing rent under sub-section (2) of section 13 and the manner of service of notice of such deposit of rent on the landlord;

(b)

the form of receipt on account of payment of rent under this Act;

(c)

charging or remitting of costs and fees under this Act and the fixing of the amount or the scale of such costs and fees;

(d)

the manner of exercising the powers of revision by Commissioner under section 18B.

(e)

any other matter by this Act required, or expressly or impliedly authorised, to be prescribed.

25.

Repeal and Savings.

(1)

The Bihar Buildings (Lease, Rent and Eviction) Control Ordinance, 1946 (Bihar Ordinance 21 of 1946), is hereby repealed.

(2)

Any rule, order or direction made or given or deemed to be made or given under the said Ordinance and in force immediately before the commencement of the Act shall continue in force and be deemed to be an order or direction made or given under this Act; and anything done and any action taken in exercise of any power conferred by or under the said Ordinance shall be deemed to have been made, done or taken in exercise of powers conferred by or under this Act as if this Act had commenced on the 1st day of October, 1946.

The Schedule

[See Section 1(2)]

Serial No.

Name of district

Local areas to which the Act applies

1

2

3

1.

Patna

Local areas comprising the police stations of-

Pirbahore, Sultanganj, Alamganj, Khajekalan, Chaukkalan, Malsalami, Phulwari, Digha, Patna Kotwali, Kadamkuan, Dinapore and Khagaul, excluding the local areas comprised within the Dinapore Cantonment.

2.

Gaya

Ditto

Kotwali and Moffasil Gaya.

3.

Shahabad

Local areas comprised within the Arrah Municipality and Dalmianagar-Dehri Notified Area.

4.

Muzaffarpur

Ditto

Muzaffarpur town, Hajipur town and Sitamarhi town and also local areas comprised within the Dumra Notified area.

5.

Saran

Ditto

Chapra and Siwan.

6.

Champaran

Ditto

Motihari and Bettiah Municipalities.

7.

Darbhanga

Ditto

Darbhanga town, Laheriasarai town, Samastipur, Rosera, Dalsingsarai, Madhubani and Jainagar.

8.

Bhagalpur

Ditto

Bhagalpur Kotwali, Bhagalpur Muffasil and Nathnagar and also local areas comprised within the Colgong Municipality.

9.

Monghyr

Ditto Monghyr Town, Jamalpur and Khagaria.

10.

Purnea

Ditto

Katihar, Purnea Sadar, Khaja-nchihat and Kishanganj.

11.

Santhal Parganas

Ditto

Dumkatcwn, Deodar, Madhipur, Jamtara, Hirapur Bazar, Pakur, Sahebganj, Rajmahal and Godda

12.
Ranchi
Ditto
Ranchi Sadar, Ranchi Kotwali, Gumla, Khunti and Lohardagga.
13.
Hazaribagh
Ditto
Hazaribagh, Ichak, Giridih, Ramgarh [excluding the local areas comprised within the Ramgarh Cantonment and Koderma.]
14.
Palamau
Ditto
Daltonganj.
15.
Dhanbad
Ditto
Dhanbad, Jharia, Katras and Kenduadih.
16.
Singhbhum
Ditto
Sakchi, Bistupur, Jugsalai and Golmuri.
17.
Manbhum
Ditto
Kashipur and also local areas comprised within the Purulia, Raghunathpur and Jhalda Municipalities.
This Act was further extended to the areas mentioned below vide notifications mentioned against them:
1.
Local area comprised within the limit of.
Forbesganj Municipality in the district of Purnea.
Notification No. 19003 P. C. dated 5.7.49 published in Bihar Gazette (Extraordinary).
2.
"
Sasaram Municipality in the district of Shahabad.
Notification No. 31739 P. C. dated 30.12.49 published in Bihar Gazette (Extraordinary) dated 31st Dec. 1949.
3.
"
Jamui Union Committee & Begusarai Notified Area in the district of Monghyr.
Notification No. Misc. 14/50 P.C. 16649 dated 12.8.50 published in Bihar Gazette (Extraordinary) dated 16th August, 1950.
4.
"
Chatra Municipality in the district of Hazaribagh.
Notification No. Misc. 14/50-17889 P. C. dated 30.8.50 published in Bihar Gazette (Extraordinary) dated 31.8.1950.
5.
"

Godda Union Committee in the district of Santhal Parganas.
Notification No. Misc. 14/50 -20916 P.C. dated 7.10.1950
published in Bihar Gazette (Extraordinary) dated 11th October,
1950.

6.
"

Chaibasa & Chakradharpur Municipal areas in the district
of Singhbhum.
Notification No. 6755 P. C. dated 21st March, 1947.

7.
"

Jhajha Union Committee in Jamui Sub-division of Monghyr
District.
Notification No. Misc. 10/53 P.C. 18919 dated 13.11.53.

8.
"

Jogra, Jograpokhar, Sindri, Chirkunda Police Station in the
district of Manbhum.
Notification No. Misc. 10/53 P.C. 17826 dated 23.10.53.

9.
"

Jahanabad Union Committee in the district of Gaya.
Notification No. Misc.14/50-2149 P.C. dated 20th January,
1951.

10.
"

Civil Line, police station in the Sadar Sub-Division of the
district of Gaya.
Notification No. Misc. 14/50-1057 P. C. dated 9th February,
1951.

11
"

Mihijam Notified Area Committee in the district of Santhal
Parganas.
Notification No. Misc. 23/51-9173 P. C. dated 4th April, 1951.

12
"

Saharsa Notified Area Committee in the Sub-Division of
Saharsa.
Notification No. Misc. 23/51-24834 P.C. dated 8/12th Sept.
1951.

13
"

Barh
Notification No. (not available).

14
"

Nawadah & Aurangabad Union Committee in the district of
Gaya.
Notification No. Misc. 6 Q. N. 1 /54 P. C. 7567 dated 28.4.54
published in Bihar Gazette (Extraordinary) dated 30.4.54.

15

"

Gopalganj

Notification No. 5574 P.C. dated 26th March, 1953.

16

"

Buxar Municipality, Police Station.

Notification No. 837 P.C. dated the 13th January, 1950.

17

"

Bermo Police Station

Notification No. 2098 P.C. dated 27th July, 1951.

18

"

Seraikella Municipality.

Notification No. 2238 P.C. dated the 3rd Feb., 1953.

19

"

Barabazar, Chandil, Balrampur & Chas Police Stations.

Notification No. 2423 P.C. dated 28th October, 1952.

20

"

Supaul & Madhipura.

Notification No. 6505 P.C. dated the 20th March, 1952.

21

"

Chandil Police Station in the district of Singhbhum & Chas
P. S. in Dhanbad.

Notification No. N-A105/56-57 S. C. 4724 dated 4.4.57.

22

"

Bhabhua Municipality in the district of Shahabad

Notification No. M-A 102/57 S.C. - 9926 dated 20.7.1957.

23

"

Mokameh Notified Area Committee and Town of Bikram in the
district of Patna.

Notification No. (not available).

24

"

Rajgir Notified Area Committee in the district of Patna.

Notification No. M. A. 106/61 S. C. - 8250 dated 6th May,
1961.

25

"

Raxaul Notified Area Committee in the district of Champaran.

Notification No. M. A. 12-02/ 63 S. C. - 9585 dated 10th June,
1963.

26

"

Araria Union Board in the district of Purnea.

Notification No. M. A. 106/61-20309 S.C. dated 21st November, 1961.

27

"

Banka Notified Area Committee in the district of Bhagalpur.

Notification No. S. O. 66 dated 15th January, 1972.

Notifications

[S.O. 190 dated 15.2.71, published in Bihar Gazette (Extraordinary) dated 20.2.71]. - In exercise of the powers conferred by clause (a) of Section 2 of the Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947 (Bihar Act III of 1947), the Governor of Bihar is pleased to empower the Additional Collector posted at the headquarters station of the district of Saran to perform the functions of an appellate authority under the said Act within the local limits of the said district.

[S O. 1133, dated 22.12.71 published in Bihar Gazette (Extraordinary) dated 29.12.1971]. - In exercise of the powers conferred by clause (a) of Section 2 of the Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947 (Bihar Act III of 1947), the Governor of Bihar is pleased to empower the Additional District Magistrate posted at the headquarters station of the district of Ranchi to perform the functions of an appellate authority under the said Act within the local limits of the said district.

[S.O. 779 dated 10.9.71 published in Bihar Gazette (Extraordinary) dated 16.9.71].-In exercise of the powers conferred by clause (b) of Section 2 of the Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947 (Bihar Act III of 1947), the Governor of Bihar is pleased to appoint such Magistrate who may be the seniormost Magistrate next to the Sub-divisional Officer and who may be under District Magistrate for the time being posted in Patna Sadar Sub-division to perform the function of a Controller under the said Act within the local limits of Patna Sadar Subdivision.

[Notification No. 9207 P. C. dated 12.3.47. - In exercise of the powers conferred by subsection (1) of S. 92, Government of India Act, 1935, the Government of Bihar is pleased to direct that the Bihar Buildings (Lease, Rent and Eviction) Control Act, 1947 (Act

3 of 1947

) shall apply to Chhota Nagpur Division and to the Santhal Parganas District.]

Related AI tags, queries and research notes

Translation